

terms and conditions of the Arbitration Agreement or further order of the Court.

4. Lastly, the Court shall set the matter for a Case Management Conference (CMC) in 180 days, regarding the status of arbitration completion, and give notice of such CMC to all parties.

9. 9:00 AM CASE NUMBER: L25-10329

CASE NAME: ODK CAPITAL, LLC VS. ASHLEY ZIEGLER

HEARING IN RE: MOTION TO COMPEL

FILED BY:

TENTATIVE RULING:

Defendant Ashley Ziegler (“Defendant”) filed a Motion to Compel Arbitration and Stay Proceedings on November 12, 2025 (the “Arbitration Motion”). The Arbitration Motion was set for hearing on January 6, 2026. The motion is unopposed.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties’ agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard “in a summary way in the manner ... provided by law for the making and hearing of motions.” Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) (“FAA”) applies to agreements involving

interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id.*

Analysis

Defendant's motion contends that the Personal Guaranty upon which Defendant has been sued in this action is subject to an arbitration clause in the subject "Business Loan and Security Agreement and Guaranty." See Declaration of Ashley Ziegler ("Ziegler Decl.") filed November 12, 2025, ¶¶2-3 and **Exhibit A** thereto.

The Business Loan and Security Agreement contains an arbitration clause:

33. ARBITRATION AGREEMENT AND CLASS ACTION WAIVER. THE PARTIES AGREE THAT AT THE ELECTION OF ANY PARTY, ALL CLAIMS BETWEEN BORROWER, GUARANTORS, LENDER, AND SERVICER SHALL BE RESOLVED THROUGH MANDATORY BINDING INDIVIDUAL ARBITRATION PURSUANT TO THIS SECTION.

Business Loan and Security Agreement, ¶33, Ziegler Decl., **Exhibit A** (the "Arbitration Agreement"). Under the terms of this Arbitration Agreement, it expressly encompasses "GUARANTORS..." *Id.* The Arbitration Agreement also encompasses the claims against the named corporate defendant SF Hound Lounge, Inc. ("SF Hound Lounge, Inc."). *Id.*

Accordingly, the Court finds that a written agreement to arbitrate exists, as set forth in the Arbitration Agreement. The Arbitration Agreement is governed by the FAA.* Arbitration Agreement, ¶33(H). ("This arbitration section is governed by the Federal Arbitration Act...").

The Court further finds that there is a controversy between the parties that is subject to the Arbitration Agreement. It is evident that the claims at issue in this action, as pled in the operative Complaint by Plaintiff, are within the scope of and subject to that agreement.

Defendant's present motion is sufficient to constitute an election and demand for arbitration under the Arbitration Agreement. See Arbitration Agreement, ¶33.C (arbitration may be initiated "...at the election of any party..."); see also *id.* at ¶33.G.

The Court finds that Plaintiff has failed or refused to arbitrate in accordance with the Arbitration Agreement. Plaintiff's filing of a lawsuit and non-compliance following the filing of the pending motion is sufficient to show refusal or failure to arbitrate the controversy.

Lastly, the Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

*Although the Arbitration Agreement provides that the arbitration is to be governed by the FAA and "... the extent it is applicable, by Utah law[.]" generally the California Arbitration Act governs arbitral procedures brought in California courts. See *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922. There has been no showing of some specific limitation or provision of the FAA or Utah law relevant to enforcement of the subject Arbitration Agreement in this case. Therefore, the Court need not consider whether and to what extent the FAA or Utah law applies for purposes of deciding this motion. In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring

arbitration. *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is GRANTED.
2. **Defendant, as the party electing arbitration, shall initiate the arbitration before JAMS (the “Arbitration Service Provider”).** Defendant shall initiate the arbitration process in accordance with the Arbitration Agreement and any applicable rules of the Arbitration Service Provider.
3. The pending action is STAYED until an arbitration is completed pursuant to the terms and conditions of the Arbitration Agreement or further order of the Court.
4. The scope of the arbitration shall include all named defendants, including Defendant and SF Hound Lounge, Inc.
5. Lastly, the Court shall set the matter for a Case Management Conference (CMC) in 180 days, regarding the status of arbitration completion, and give notice of such CMC to all parties.

10. 9:00 AM CASE NUMBER: L25-12315
CASE NAME: BRIGGSYBUNCH LLC VS. AIRCOM MECHANICAL, INC
HEARING IN RE: VERIFIED PETITION TO EXPUNGE MECH LIEN
FILED BY: BRIGGSYBUNCH LLC
TENTATIVE RULING:

Petitioner BriggsyBunch LLC (“Petitioner”) filed a Verified Petition to Expunge Mechanic’s Lien pursuant to Civil Code sections 8480 and 8484 on October 27, 2025 (the “Petition”). That Petition was set for a hearing date of January 6, 2026.

A Proof of Service of Summons was filed on December 15, 2025 reflecting service of the Summons, Petition and related papers on December 12, 2025 on respondent AirCom Mechanical, Inc. (“Respondent”).

Background

Petitioner’s Petition seeks the release of a Mechanics’ Lien recorded on the subject real property commonly known as 5444 Clayton Road, Concord, California (the “Subject Real Property”) on or about February 28, 2025 (the “Mechanics’ Lien”) because Petitioner contends that Respondent failed to bring an action to enforce the lien within 90 days after the recordation of the claim of lien.

Analysis

The owner of property or the owner of any interest in property subject to a claim of lien may